

Litigation Hold and Records Preservation Procedure

When a litigation hold is placed on an organization's records, it means that all relevant documents must be preserved in their original form until further notice from legal counsel. This suspension of normal record deletion schedules immediately comes into effect, and any employee or department responsible for managing these records must take immediate action to prevent any accidental deletion or alteration. As described under the Mobile Device Management and BYOD Policy, employees are expected to ensure that all personal devices used for work purposes are properly secured and backed up, as any data stored on these devices may be subject to preservation.

In order to maintain compliance with the litigation hold, all records must be preserved in their original form, without any editing or alteration. This includes emails, documents, spreadsheets, presentations, and any other electronic or physical files that contain relevant information. Any employee who is responsible for managing these records must ensure that they are properly stored on a secure server or in a designated repository, where they can be easily retrieved by legal counsel if needed.

The Supplier Diversity and Ethical Sourcing Policy also comes into play when it comes to litigation holds, as any contracts or agreements with suppliers may contain confidential information that is subject to preservation. In these cases, employees must ensure that all relevant documents are properly stored and preserved, in accordance with the terms of the contract or agreement. Only after legal counsel has approved the release of these records can they be deleted or altered.

In order for a litigation hold to be lifted, legal counsel must approve the release of any held records before deletion may resume. This approval is typically obtained through a formal notification process, where legal counsel will review and verify that all relevant documents have been properly preserved and are ready for release. Until this approval is received, employees must continue to follow the procedures outlined in this document, ensuring that all records are properly preserved and stored securely.

It is essential that all employees understand the importance of maintaining a litigation hold during an active lawsuit or investigation, as failure to comply with these procedures can result in serious consequences for the organization. Employees who have questions or concerns about the litigation hold procedure should refer to the relevant policies and procedures outlined in this document, including the Mobile Device Management and BYOD Policy and the Supplier Diversity and Ethical Sourcing Policy.